

HOUSE BILL 1020

By Russell

AN ACT to amend Tennessee Code Annotated, Title 29
and Title 39, relative to claims against law
enforcement officers.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 29, Chapter 34, Part 2, is amended by
adding the following as a new section:

(a) A law enforcement officer who causes property damage to or inflicts personal
injury upon a person during the course of the law enforcement officer's official duties is
immune from civil liability for or the payment of monetary damages resulting from the law
enforcement officer's actions if at the time the damage or injury occurred, the person
suffering the injury or damage was engaged in conduct that resulted in the person being
convicted of an offense under § 39-16-602.

(b) This section does not:

(1) Apply if the law enforcement officer's actions were grossly negligent
or willful misconduct; or

(2) Extend to property damage caused or injury inflicted upon a
bystander or other person who was not engaged in conduct that resulted in a
conviction under § 39-16-602 at the time the damage or injury occurred.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.